

24SMCV03549 24SMCV03549

County: los-angeles

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Case Number: 24SMCV03549 Hearing Date: July 17, 2026 Dept: P

Tentative

Ruling

Halee

Dion v. General Motors, LLC, Case No. 24SMCV03549

General

Motors, LLC's Motion to Tax Costs

Hearing

Date: July 17, 2026

Background

This is a

lemon law case. Plaintiff Halee Dion brought suit against Defendant General Motors, LLC alleging GM's failure to repair or re-purchase Dion's 2023 Cadillac CT5's defects, including transmission and engine issues. (Complaint, ¶ 12.)

On July 24,

2024, Dion filed the complaint. On August 28, 2024, GM answered.

In October

2025, both parties filed pre-trial motions in limine.

On October

30, 2025, Dion filed a Notice of Settlement of Entire Case.

On February

17, 2026, Dion filed a Memorandum of Costs. On February 27, 2026, GM filed a motion to tax costs. On July 6, 2026, Dion filed opposition. On July 10, 2026, GM replied.

On March 10,

2026, Dion filed a motion for attorneys' fees. The Motion for Attorneys' fees is set for hearing on August 17, 2026.

Arguments

GM moves to tax Plaintiff's service fees for trial subpoenas served on Cadillac dealership employees as not reasonably necessary because Plaintiff's vehicle had never been serviced at that Cadillac dealership. (Motion to Tax Costs, p. 5.) GM also moves to tax Plaintiff's administrative filing fees for notices of settlement, ruling, and stipulation and order to continue trial as expenses that did not advance Plaintiff's case. (Motion to Tax Costs, p. 5.)

In opposition, Plaintiff argues that it is entitled to recover expenses in addition to costs under Civ. Code 1794(d). (Opposition, p. 2.) Plaintiff also argues that GM ignores the applicable standard, wherein the verified memorandum of costs is prima facie evidence of their propriety. (Ibid.) Plaintiff argues that GM's assertion that it filed a motion for summary judgment in this case is false and that Plaintiff produced many repair warranties in this case. (Id. at p. 3.) Plaintiff argues that dealerships are percipient third-party witness who must be deposed in cases such as this. (Ibid.) Finally, Plaintiff argues that its filing fees are recoverable costs under Code Civ. Proc. § 1033.5. (Id. at p. 4.)

In reply, GM argues that Plaintiff provided no concrete evidence that the contested costs were required, as the attached receipts do not show that the expense was reasonable or necessary. (Reply, p. 4.) GM argues that Plaintiff's service fees were duplicative because all the subpoenas were served at the same location and at the same time. (Id. at p. 5.) It also argues that the administrative fees improperly include third-party service fees and processing fees. (Ibid.)

Motion to Tax Costs

Code of Civil Procedure section 1033.5(a) sets forth the items allowable as costs while Section 1033.5(b) details the items that are not allowable as costs. (Code Civ. Proc., §§ 1033.5, subd. (a), (b).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion." (*Acosta v. SI Corp.* (2005) 129 Cal.App.4th 1370, 1380.) Costs must be both "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation," (Code Civ. Proc., § 1033.5(c)(1)), and reasonable in amount. (Code Civ. Proc., § 1033.5(c)(2).)

Generally, the burden on a motion to tax costs depends upon whether the costs appear proper. "If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant, and the burden of showing that an item is not properly chargeable or is unreasonable is upon the objecting party." (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) "The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable." (*Ibid.*)

Analysis

Both challenged costs are allowable under Code Civ. Proc. § 1033.4(a)(1) and 1033.5(a)(4). The burden therefore shifts to GM to show that the costs are unreasonable.

GM argues that the costs are unreasonable because Plaintiff's car was never serviced at Cadillac of Beverly Hills and because all the subpoenas were served together, and should be billed as one cost. Plaintiff produces repair records showing that the vehicle at issue was serviced at Cadillac of Beverly Hills, where it served the subpoenas on Cadillac employees. (See Wood Decl., Exhibit A.) Cadillac of Beverly Hills employees were percipient witnesses to Plaintiffs' car issues, so the subpoenas would have been

necessary had the case not settled. (Wood Decl., Exhibit B.) Additionally, where a process server charges a flat fee per subpoena served, as here, those costs are reasonable even when service is at one address because were unavoidable. The Court finds that Plaintiff's service costs are reasonable.

GM does not make any argument as to why the three filing fees it identifies were unreasonable. The filing fees were necessarily incurred in filing necessary documents. It is not clear on what basis GM has identified the stipulation to continue trial, notice of settlement, and notice of ruling as unnecessary filings. GM argues that it should not have to pay processing fees associated with filing. The Court finds that GM has not shown that the processing fees were unreasonable.

Conclusion

Plaintiff's Motion to Tax Costs is DENIED.